

5. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

HEARING IN RE: MOTION TO TAX COSTS

FILED BY:

TENTATIVE RULING:

Plaintiff has filed a Motion to Tax Costs, along with a Memorandum and Declaration. These documents were timely served on Defendant.

Defendant filed a response in Opposition.

Background

On 3/12/26, Defendant filed requests for costs associated with a judgement in Defendant's favor. That judgment occurred after a court trial in which the court rendered judgment for Defendant on 3/11/26.

In the declaration of Defendant's counsel, filed 3/12/26, Defendant, through counsel, provided a table of costs, that appears on the last page. These costs total \$1,095.64, and include matters such as: filing costs, mileage costs, and parking costs.

Plaintiff's Motion appears to challenge these costs.

In his Response, Counsel for Defendant provides documentation to support costs of \$1,405.35, which is a different amount than that stated in his memo of costs filed with the court, filed on 3/12/26.

Disposition

This Motion will be continued for Defendant to file a current memo of costs with the court, one that reflects the accurate amount of costs.

Motion will be continued to 9/22/26, 9am.

Court to file Order and provide notice to parties.

6. 9:00 AM CASE NUMBER: L24-09342

CASE NAME: WELLS FARGO BANK, N.A. VS. MARTIN GONZALEZ

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON 3/17/26**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer.

Plaintiff has also filed a declaration of costs and attorney's fees.

The Motion is unopposed.

Background

On 11/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 8/19/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 8/19/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$3,550.04, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/12/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$3,550.04.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746

("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Costs and Attorney's fees total \$1,220.
2. Plaintiff shall file Order.

7. 9:00 AM CASE NUMBER: L25-02344
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ERICA MARRERO
***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION PLAINTIFF, TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF VS. STIPULATED SETTLEMENT**
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed on counsel for the Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,704.93, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,700.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,004.93.